SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 April 22, 2026
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 8:30 AM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Hearing on Motion to Set Aside/Vacate Default and Default Judgment (CCP 473.5)

The matter is called for hearing.

By 9:28 AM, the Court confirmed with the Judicial Assistant that no appearances, either remote or in-person had been made by or for Defendant(s).

The Court has read and considered all documents filed herein connection regarding Defendant Derrick Lamont Beverly's Motion to Set Aside/Vacate Default and Default Judgment.

Counsel for Plaintiff appears in opposition.

The Court issues an Oral Tentative Ruling.

Plaintiff submits on the Court's Tentative Ruling.

After reading and considering all moving papers filed in support and opposition, the Court adopts its Tentative Ruling as the Final Ruling as follows:

The Motion to Set Aside/Vacate Default and / or Default Judgment filed by Derrick L. Beverly on 03/24/2026 is Denied.

Relief pursuant to Code of Civil Procedure § 473(d) is denied because Defendant has not offered sufficient or credible evidence to rebut the testimony of Plaintiff's registered process server regarding personal service of the summons and complaint on him on October 27, 2022. (Evid. Code § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the

return."]; Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1428 ["The effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence. . ."].)

The court cannot grant any relief pursuant to Code of Civil Procedure §§ 473(b) or 473.5 because more than three years have passed since judgment was entered against Defendant.

The court also finds that Defendant has not presented sufficient evidence that warrants exercise of the court's inherent authority to set aside default judgments entered due to extrinsic fraud or mistake. Defendant has not offered sufficient evidence of any meritorious defense to this action or evidence to suggest that the default was entered due to some extrinsic mistake or fraud. (See In re Marriage of Stevenot (1984) 154 Cal.App.3d 1051, 1074 ["A party who seeks to set aside a default judgment pursuant to the court's equity power must make a substantially stronger showing of the excusable nature of his or her neglect than is necessary to obtain relief under Code of Civil Procedure section 473."].)

Moreover, defendant has sought relief from the 11/29/2022 default judgment on numerous occasions prior to today by way of ex parte applications and motions, and all have been denied. This motion is therfore, in essence, a motion seeking reconsideration of the court's prior rulings denying defendant's sought after relief, subject to Code of Civil Procedure § 1008(a). Considering the motion as such it must be denied, as Defendant has not submitted an affidavit or declaration stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." Moreover, it fails on its merits. A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Id.) That a party believes the court misinterpreted the law is not grounds for seeking reconsideration. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) Moreover, there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) The burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212–213.) The motion is not based upon any new or

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difference facts, circumstances, or law; judgment was entered over three years ago and has since become final, therefore any motion for reconsideration is denied.

Counsel for Plaintiff to give notice.